

of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.”

The applicable standard for mandatory intervention is set forth in *Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560:

Mandatory intervention is governed by Code of Civil Procedure section 387, subdivision (d)(1)—which “should be liberally construed in favor of intervention.” *Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1200. Under that section, “a party's proposed intervention must be timely.” *Lofton v. Wells Fargo Home Mortgage* (2018) 27 Cal.App.5th 1001, 1012, 238 Cal.Rptr.3d 626 (Lofton). If timely, then the proposed intervenor, to establish mandatory intervention under subdivision (d)(1)(B), must show (1) “ ‘an interest relating to the property or transaction which is the subject of the action’ ” *Siena Court Homeowners Assn. v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1423, 79 Cal.Rptr.3d 915 (Siena Court); italics omitted; (2) “he or she ‘is so situated that the disposition of the action may as a practical matter impair or impede’ ” his or her “ ‘ability to protect that interest’ ” *id.* at p. 1424, 79 Cal.Rptr.3d 915; and (3) he or she is not “ ‘adequately represented by the existing parties’ ” *ibid.*

Id. at 572-73 (parentheses omitted).

At bar, the SP Partners are entitled to intervene as a matter of right under Code of Civil Procedure section 387(d)(1)(B). SP Partners have a concrete interest in the property and transaction at issue, *i.e.*, the sale of the mobile home park property; deciding this action without SP Partners’ participation would impair their ability to protect their interest in recovering on their investment; the existing parties will not adequately represent that interest; and SP Partners’ February 24, 2026, motion is timely in connection with the February 2, 2026, Complaint. Further, the motion is unopposed.

SP Partners’ motion is granted.

5. CU21-086089 George L Horner, et al vs. Deborah Carver

Defendant Deborah J. Carver (“Carver”)’s requests to strike/disregard the Referee’s report/photographs and to compel inspection by a licensed inspector are denied.

Under Code of Civil Procedure section 873.060, Referee Brzezinski is authorized to “perform any acts necessary to exercise the authority conferred by the order of the court” to sell the property. No good cause has been stated to disregard the Referee’s report. From the reports of the Referee and the parties it is clear that the subject property needs further inspection and likely requires additional work before it can be marketed for sale. Within 60 days of this order, the Referee shall retain any professionals deemed necessary to perform inspections and provide estimates for repairs reasonably necessary to prepare the property for market. The Referee shall continue to be mindful of and considerate to all household occupants, including Carver’s mother. Any cost or expense associated with such retention (for recommendations and estimates only) shall be shared by the parties according to their respective ownership interests, to be reimbursed from the proceeds of the sale.

The Court sets a review hearing for July 24, 2026 at 10:00 a.m. in Department 6. Each party and the Referee shall file a status report of no more than three (3) pages in connection with preparation of the property for sale no later than two weeks prior thereto. No further briefing or declarations are authorized with respect the same.

Plaintiff Horner's request that Carver be ordered to vacate the premises is denied without prejudice. Carver's request for a stay is denied without prejudice. Any such requests must be made by noticed motion.

Carver's May 8, 2026, declaration and amended declarations, filed in violation of the Court's April 3, 2026, order and without leave, are ordered stricken.

The parties are reminded that they have an obligation to ensure that all legal citations *fully* and *accurately* represent the applicable law. This applies to parties represented by counsel and to those that represent themselves.

6. CU0001978 Bridgett Higginbotham vs. Pacific Specialty Insurance, et al.

Defendant Greenspan Adjusters International, Inc.'s Demurrer to Pacific Specialty Insurance Company's Cross-Complaint

Defendant Greenspan Adjusters International, Inc.'s ("GAI") demurrer to the Cross-Complaint of Pacific Specialty Insurance Company (PSIC) is overruled.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-114.

"If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted." *Milligan v. Golden Gate Bridge Highway & Transportation Dist.* (2004) 120 Cal.App.4th 1, 6.